THE ROYAL LEGAL TANGLE



1996: Bangalore Palace (Acquisition and Transfer) Act enacted to take over 472 acres of palace property from erstwhile Mysore royals

1997: Karnataka High Court upholds Act; civil appeal pending in Supreme Court since

2014: Apex court allows state to utilise 15.97 acres for road widening by issuing Transferable Development Rights (TDR) to appellants

2021: Contempt petitions filed against Karnataka for not complying with the SC's 2014 order

2024: Court directs Karnataka to pay TDR as per market value—a whopping Rs 3,014 crore for 15.97 acres. In comparison, compensation as per the 1996 Act amounts to just Rs 37.28 lakh

2025

Jan. 29: The **Siddaramaiah** government promulgates ordinance empowering itself to drop the land utilisation plan

Feb. 27: The Supreme Court, taking a stern view of the move, asks the government to deposit the TDR certificates within 10 days

on the same property—if only a part of it has been surrendered—or encash the certificate by transferring it to builders who can utilise it elsewhere.

But in this case, DRCs were never issued in the 10 years following the apex court ruling as the Karnataka government, under different regimes, vacillated between complying with the 2014 order and pleading for its modification—on grounds of financial hardship and the concern that it would not be possible to recover the value of TDR if the BPAT litigation eventually went against the royal heirs. The state's argument was that compensation ought to be calculated under the less taxing terms of the BPAT Act—the 1996 legislation had valued the entire palace property of 472 acres at Rs 11 crore and thereby, compensation for the 15.97 acres would amount to Rs 37.28 lakh, Karnataka contended.

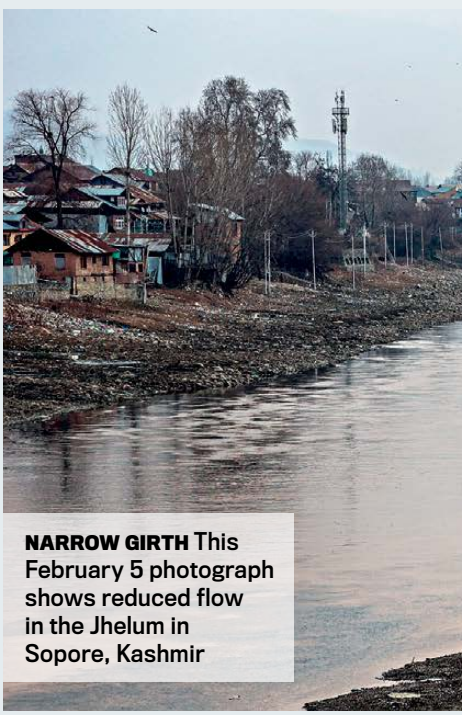
The Supreme Court, in May 2022, rejected this plea seeing no need to modify its 2014 order. By then, contempt petitions had been filed for non-compliance. Finally, on December 10, 2024, while deciding the contempt case, the court gave the Karnataka government one final opportunity to comply with its order. Issuing TDR as per the prevailing guidance value of land fixed under the Karnataka Stamp Act, 1957, worked out to about Rs 200 crore per acre, which meant the state would have to value the 15.97 acres of palace grounds at a whopping Rs 3,014 crore.

Alarmed at the financial implications, the Siddaramaiah government urgently promulgated an ordinance on January 29 this year, essentially empowering itself to drop the land utilisation plan. "The decision we have taken is in the interest of Karnataka," law minister H.K. Patil said at a briefing on January 24, when the cabinet cleared the ordinance, adding that the state would "come into danger as regards development" given the quantum of compensation. But, on February 27, the court, taking a stern view of the development, asked the Karnataka government to deposit the TDR certificates within 10 days, while listing the next hearing for March 20. All eyes are now on the Siddaramaiah government as it scrambles to navigate this royal legal tangle. ■

It's a miracle Kashmir calls its own—the mysterious appearance every year in February of the Vasak Nag stream during the *urs* (festival) of Sufi saint Syed Noor Shah Wali Baghdadi in Kund village of Kulgam district. This precursor to the Vasak Nag's six-month-long run from April to September every year—when it disappears again—is seen as the presage for a good year. This February, the Vasak Nag didn't make an appearance. It was a bad omen, but not just in a symbolic way. The stream caters to the drinking water and irrigation needs of 13 villages. What it sparked is fears of an imminent water crisis, one that is emblematic of Jammu and Kashmir's parched 2024-25 winter season. "I haven't seen a situation like this. This is the punishment for our deeds," says nonagenarian Abdul Mattoo, leaning on his walking stick.

The looming water crisis had Chief Minister Omar Abdullah worried too. "For upcoming summers, we need to prepare ourselves. Somewhere, we need to bring changes to our usage of water," he said. Worried locals, however, sought refuge in tradition—special, open-air prayers were held across Kashmir to pray for rains. At last, in late February, their prayers were answered—there was a fresh spell of snow in the upper reaches of

AFP



NARROW GIRTH This February 5 photograph shows reduced flow in the Jhelum in Sopore, Kashmir